

2.1 Introduction

To obtain a sound command of South Africa's system of constitutional law, it is important that we consider certain fundamental concepts at the outset. This is necessary to establish a common understanding of the doctrines, concepts and principles that lie at the heart of the Constitution, 1996 (hereinafter referred to as the 'Constitution'), the context in which it emerged and the context in which it operates. These doctrines, concepts and principles are given concrete expression in many of the provisions of the Constitution. When we study specific aspects of the Constitution, therefore, we need to do so in the light of the doctrines, concepts and principles discussed in this chapter.

The aim of this chapter is to introduce some of the overarching ideas that are pivotal in both explaining and contextualising the development of South Africa's system of constitutional law. Although we focus on constitutional developments that have taken place in the period after South Africa's transition to democracy, we also consider some important constitutional moments from the colonial and apartheid periods for purposes of context. We also locate these constitutional developments within a broader historical and political context that recognises the influence of the constitutional law and practices of other countries.

2.2 Constitutionalism

2.2.1 Understanding the nature of constitutionalism

Constitutionalism as a concept is not easy to define. The term 'constitutionalism' is sometimes used to convey the idea of a **government** that not only acts under the authority of a written constitution, but is also limited by it. In the modern context, constitutionalism is commonly used to describe a political community in which elected politicians, government officials and judicial officers must all act in accordance with the law, whose legitimacy and power is derived from the constitution itself.¹

Constitutionalism, in this sense, is concerned with two issues: first, how to establish a government with sufficient power to realise a political community's shared purposes and to implement the programmes for which a specific government has been elected by voters; and second, how to structure that government and control the exercise of power by the various institutions and structures of government (and other powerful role players in society) in such a way that oppression and abuse of power are prevented.² A number of key characteristics can be derived from this description of constitutionalism. Among these are the following:

- First, constitutionalism identifies and establishes the institutions and structures of governance, such as the legislature, the executive and the judiciary and the national, provincial and local spheres of government.³
- Second, constitutionalism is concerned with the formal and legal distribution of public power among the different institutions and structures of governance and the procedures they must follow when they exercise these powers.

1 See Hogg, PW (2007) *Constitutional Law of Canada* 5th ed 2.

2 See generally Currie, I and De Waal, J (2001) *The New Constitutional and Administrative Law, Vol 1 Constitutional Law* 10.

3 The British constitutional system, to be discussed in detail below, is one notable exception in that the Constitution is not contained in one written document.

- Third, constitutionalism plays an important role in determining the nature and basis of relations that exist between institutions and structures of governance and those they govern.
- Fourth, constitutionalism envisages the enactment of binding rules or laws for the regulation of the political community and its institutions and structures of governance.
- Last, and implicit in the previous points, constitutionalism simultaneously authorises and imposes limits on the exercise of public power, while also being concerned with establishing institutional mechanisms to ensure that the exercise of such power takes place within the vision and parameters set by the constitution.

In the light of the characteristics set out above, we can conclude that, in essence, constitutionalism is about the notion that a constitution must *both* structure and constrain state power. On the one hand, a constitution must establish institutions and structures of governance and allocate power to them for the effective governing of a state. On the other hand, it must limit and disperse that power among the institutions and structures of governance in an attempt to ensure that it will not be abused.

While constitutionalism seeks to achieve what are clearly important, if not sometimes conflicting, ideals, it is important to acknowledge that the manner in which these ideals may be achieved differs from one political community to the next. The system of constitutionalism adopted by a political community and its relationship to other important constitutional law concepts, such as the separation of powers, the **rule of law**, democracy and the protection of human right depends on a variety of factors. Perhaps the most important of these is the political and social history of that community.

An important consequence of these diverse political and social histories is that over the centuries during which the concept of constitutionalism has evolved, different understandings and different models have developed. These differences are reflected in the explicit or implicit **norms** and values on which a particular constitution is based, the manner in which a particular constitution structures and allocates power and the way in which the text of the constitution has been interpreted and applied by the judiciary and other bodies. We consider some of these understandings and models below.

PAUSE FOR REFLECTION

The unique nature of South African constitutionalism

The model of constitutionalism adopted by a political community depends partly on its political and social history. This point was eloquently made by Mahomed J in his concurring judgment in the death penalty case, *S v Makwanyane and Another*, when he said the following:

All Constitutions seek to articulate, with differing degrees of intensity and detail, the shared aspirations of a nation; the values which bind its people, and which discipline its government and its national institutions; the basic premises upon which judicial, legislative and executive power is to be wielded; the constitutional limits and the conditions upon which that power is to be exercised; the national ethos which defines and regulates that exercise; and the moral and ethical direction which that nation has identified for its future. In some countries, the Constitution only formalizes, in a legal instrument, a historical consensus of values

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and aspirations evolved incrementally from a stable and unbroken past to accommodate the needs of the future. The South African Constitution is different: it retains from the past only what is defensible and represents a decisive break from, and a ringing rejection of, that part of the past which is disgracefully racist, authoritarian, insular, and repressive and a vigorous identification of and commitment to a democratic, universalistic, caring and aspirationally egalitarian ethos, expressly articulated in the Constitution. The contrast between the past which it repudiates and the future to which it seeks to commit the nation is stark and dramatic.⁴

This passage highlights the fact that the South African model of constitutionalism is aimed at remedying the injustices of our colonial and apartheid past. The Constitution, therefore, is more than just a technical document that describes the various institutions and structures of government and regulates the exercise of state power (and the limits placed on the exercise of that power) by those institutions and structures. In addition, it also explicitly sets out the norms and values on which the system of governance must be based, and prescribes and limits the manner in which state, and sometimes private, power must be exercised. The model of constitutionalism applied in South Africa, therefore, is not simply descriptive, but rather prescriptive. We explore these aspects further below.

2.2.2 Constitutionalism understood descriptively

One way in which constitutionalism can be understood is simply as a descriptive concept. Viewed in this way, constitutionalism is concerned simply with providing a factual description of the institutions and structures of governance that make up the constitutional system of a particular state.⁵ This understanding of constitutionalism tends to be formalistic in nature: it focuses on *explaining* the institutions and structures of governance, the distribution of power among these institutions and structures, the relations between them and the limitations on power as provided for in a given constitution. It does not identify or describe the normative values on which the constitutional system is based or evaluate the extent to which the institutions and structures are being used to protect and promote those values.

The idea of constitutionalism as a descriptive concept represents a practice that has largely fallen out of favour as it reduces constitutionalism to a mere explanation of a constitution's structural and operational design. It was in this descriptive sense only that, prior to the advent of democracy in South Africa, we could speak of South African constitutionalism. This was similar to other colonial territories where there was a constitution but the constitution failed to establish a representative system of government, and other

⁴ 95 (3) SA 391 (CC) para 262.

⁵ See Currie and De Waal (2001) 10, although the authors characterise this approach to constitutionalism as a 'descriptive doctrine'. This is a characterisation that was also adopted in the first edition of this book that has now been abandoned. This is because to speak of a doctrine suggests that there is a common set of ideas and beliefs that underpin the understanding. This sort of formulation is therefore incorrect as far as approaching constitutionalism descriptively, as there need not be any underlying commonality of beliefs or ideology with respect to the constitutions being described apart from the fact that they are all national constitutions.

normative concepts such as equal rights or even equal **citizenship** for both black and white inhabitants. This form of constitutionalism could at best be described as a hollow form of constitutionalism as it focused on form rather than on substance.

PAUSE FOR REFLECTION

Constitutionalism approached descriptively and its disregard for substantive justice

The formalism and disregard for substantive claims against injustice implicit in adopting a purely descriptive approach to constitutionalism is illustrated by the judgment in *Harris and Others v Minister of the Interior and Another*.⁶ In this case, the appellants applied for an order declaring the Separate Representation of Voters Act⁷ to be unconstitutional and invalid. This Act amended the Union of South Africa Act, 1909 (or 1910 Union Constitution) to remove coloured voters in the Cape Province from the common voters' roll. The appellants argued that the amendment was passed following the wrong procedure. Instead of passing the amendment by a two-thirds majority at a joint sitting of both Houses of Parliament (unicamerally) – as required by the 1910 Union Constitution – it was passed by a simple majority in each House sitting separately (bicamerally).

The Appellate Division agreed with the appellants and declared the amendment to be unconstitutional and invalid. In arriving at its decision, however, the Court focused on the formal provisions and procedural requirements of the 1910 Union Constitution. It did not look beyond the words of the Union Constitution and engage in a substantive analysis of the purpose underlying the special procedure protecting coloured voters or the racist and unjust effects of the amendment itself. The point here is that, constitutionalism approached descriptively, is unconcerned with examining the substance of a decision or conduct of persons or institutions exercising constitutional powers; as in the *Harris* case, one would be left only with procedural grounds to determine whether the amendment was valid or not.

2.2.3 Constitutionalism understood prescriptively

More recently, the notion of constitutionalism has evolved into a more ideologically infused concept. Under the influence of liberal political philosophy, constitutionalism has evolved into a concept that is concerned not only with describing the institutions and structures that make up the constitutional system of a particular state, but also with identifying and prescribing the norms and values on which a constitutional system should be based. Unlike the descriptive concept of constitutionalism, this concept prescribes the norms and values that define what may be termed as constitutional government.⁸ Constitutionalism, thus conceived, demands that a particular constitutional system adhere, at least, to the following norms and values: the separation of powers; the rule of law; democratic self-government; the protection of human rights; and the existence of an independent judiciary.⁹

6 1952 (2) SA 428 (A).

7 46 of 1951.

8 See also Akiba, O 'Constitutional government and the future of constitutionalism in Africa' in Akiba, O (ed) (2004) *Constitutionalism and Society in Africa* 5.

9 Akiba (2004) 5–6.

We discuss certain of these norms and principles in more detail below. However, before doing so, we briefly discuss three different models of constitutionalism that have influenced South Africa's constitutional development.

2.2.4 Constitutionalism in South Africa: a brief overview

2.2.4.1 Introduction

We discussed South Africa's constitutional history in chapter 1 and will not repeat it here. As noted in chapter 1, we do not agree with the view that South Africa's constitutional history can be explained solely with reference to the formal structures imposed by the colonial rulers and that South Africa's constitutional history started in 1910. Nor do we wish readers to lose sight of the bifurcated nature of the constitutional arrangements in place from 1910 to 1994. However, as the governance traditions of indigenous South Africans have had a limited impact on the provisions of the South African Constitution, we focus here on the colonial history of constitutionalism in South Africa. We, therefore, do not claim that the models considered here are the only ones that have influenced South African constitutional developments, but it is arguable that they have had the most significant and identifiable influence on the constitutional structure and content of present-day South Africa.

2.2.4.2 The era of the dominance of the Westminster constitutional model

As discussed in chapter 1, the 1910 Union Constitution¹⁰ established a colonial government that was tied to the British monarchy in several significant aspects. Apart from these formal colonial ties, another significant way in which such ties were manifested was in the constitutional model adopted at the National Convention of South Africa in 1908–1909 which led to the Union Constitution of 1910. The Union Constitution adopted a manifestly Westminster form of government which made no provision for a bill of rights and provided little by way of constitutional guarantees limiting the power wielded by Parliament.

The Westminster constitutional model has its origins in Britain.¹¹ This model evolved over an extensive period of time during which it developed certain distinctive features.¹² Although the Westminster constitutional model is premised on the British constitution, it is interesting to note that Britain does not have a 'written constitution'. Instead, what is commonly known as the British constitution is actually a series of conventions and ordinary laws in the form of **statutes**, common law and **case law** that broadly regulate state power as well as the relations between the state and its citizens.¹³ These laws taken collectively comprise the British constitution. However, where the Westminster model has been adopted, particularly in former British colonies such as pre-democratic South Africa, Botswana, Lesotho and Zimbabwe, the practice has been to reduce the constitution to writing.

10 The Union of South Africa Act, 1909. This Act was passed through both Houses of the Imperial Parliament in the United Kingdom exactly as it was forwarded after the South African Convention was held. King Edward VII assented to the Act on 20 September 1909. A Royal Proclamation of 2 December 1909 declared the date of the establishment of the Union to be 31 May 1910.

11 See generally Bogdanor, V (2009) *The New British Constitution* and King, A (2007) *The British Constitution*.

12 The origins of modern British constitutional arrangements and conventions are often traced back to the Magna Carta (the Great Charter), which is a Charter of Rights that was agreed to by King John of England on 15 June 1215. It declared that everyone, including the King, is subject to the law.

13 There have at various times been calls for the adoption of a written constitution. See, for example, Institute for Public Policy Research (1991) *A Written Constitution for the United Kingdom*.

At the heart of the Westminster model is the legislative branch, namely Parliament. In Britain, Parliament comprises the House of Commons (the directly elected lower House) and the House of Lords (the unelected upper House). Parliament lies at the heart of the Westminster model because it exercises sovereign or supreme **law-making powers**. This means that the laws passed by Parliament cannot be undone by any **organ of state** except Parliament itself.¹⁴ This characteristic feature of a Westminster-style constitution is known as parliamentary sovereignty or parliamentary supremacy. An important consequence of parliamentary sovereignty is that every law, including those that protect fundamental human rights, can be altered by ordinary parliamentary action. In addition, Parliament is said to have the power to make any law on any subject.

The contemporary position, however, is not so clear-cut. First, the United Kingdom's accession to the European Union has subjected Parliament, to some degree, to the laws of the European Community.¹⁵ Given, however, that Britain formally withdrew from the European Union on 31 January 2020, these limitations no longer apply. Second, it has long been recognised that there are certain measures that it would be politically impossible to adopt and whose enactment would never be attempted.¹⁶ Parliamentary sovereignty in Britain, properly understood, thus 'denotes only the absence of legal limitations, not the absence of all limitations or ... inhibitions, on Parliament's actions'.¹⁷ Such exceptions notwithstanding, the fact that Parliament is the ultimate law-making authority does not excuse or exempt it from being bound to respect the rule of law.

Another notable feature of this constitutional model is the formal separation between the head of state and the head of government. In practice, the head of state in Britain is the monarch (currently Queen Elizabeth II) while the head of government is the Prime Minister. After an election, the monarch calls on the leader of the majority political party in the House of Commons (or the person chosen by a coalition of parties where no party has achieved an overall majority and a coalition has been formed) to form a new government. The Prime Minister is the head of this new government and is usually the leader of the majority party in the House of Commons. The government is formed and governs in the monarch's name as long as it retains the support of a majority of members of the House of Commons.¹⁸ Political parties thus play an important role in forming a government and retaining it in power.

A closely related feature of the Westminster constitutional model is that of parliamentary government. Parliamentary government means that the executive **branch of government**, namely the Prime Minister and the Cabinet, is appointed from and continue to be members of Parliament. The Prime Minister and his or her Cabinet thus serve both as members of the legislature and as members of the executive at the same time.¹⁹ Unlike in the United States, there is no strict separation of powers between the legislature and the executive. The Prime Minister engages in regular question-and-answer sessions in the House of Commons during the Prime Minister's questions time where he or she verbally spars with the leader of the opposition and other members of opposition parties. The effect of this practice is that

14 Dicey, AV (1885) *Introduction to the Study of the Law of the Constitution* 10th ed (1959).

15 See Barnett, H (2019) *Constitutional and Administrative Law* 13th ed ch 6.

16 See Mann, FA (1990) *Further Studies in International Law* 104.

17 Munro, CR (1999) *Studies in Constitutional Law* 2nd ed 135.

18 Motala, Z (1994) *Constitutional Options for a Democratic South Africa: A Comparative Perspective* 48.

19 Currie and De Waal (2001) 14.

Parliament exercises oversight over the executive. Members of the executive are required to account to Parliament as to how they exercise their powers in conducting government business, including the development of policy and the implementation of the law, on a continuous basis.

Apart from conferring supreme authority on Parliament, the doctrine of parliamentary sovereignty also has important consequences for the courts. Perhaps the most important of these is that under this model the courts do not have the power to decide on the constitutionality of legislation passed by Parliament. Instead, their powers are limited to reviewing administrative decisions taken by Ministers and other members of the administration. The effect of this limitation on the courts' powers is that it makes them institutionally less powerful than the legislature. However, this does not mean that the courts do not enjoy significant powers or that they are any less important than the legislature within the entire scheme of governance under this constitutional model. While the courts may not have constitutional review powers, they do, when adjudicating matters, have a significant opportunity to influence how the law is interpreted and applied as well as its impact in a given situation.

In 1961, South Africa cut ties with the British Commonwealth and adopted a republican Constitution.²⁰ Institutionally, very little changed from the previous Westminster-style Union Constitution, save that the head of state was no longer the British monarch and the position of a state president was created to serve a similar ceremonial role previously occupied by the monarch.²¹ In terms of the Republic of South Africa Constitution Act 32 of 1961 (1961 Constitution), the prominence of parliamentary sovereignty as a defining constitutional feature was left in no doubt as the doctrine was provided for in explicit terms. Section 59 of the 1961 Constitution reads as follows:

Parliament shall be the sovereign legislative authority in and over the Republic, and shall have full power to make laws for the peace, order and good government of the Republic.

No court of law shall be competent to enquire into or to pronounce upon the validity of any Act passed by Parliament other than any Act which repeals or amends or purports to repeal or amend the provisions of section one hundred and eight or one hundred and eighteen.²²

Given the bifurcated nature of the state and the apartheid policies of the National Party (NP) which governed South Africa from 1948–1994, it is not surprising that during this period the NP government used parliamentary supremacy as a powerful instrument to secure political power for the white minority. In addition, the NP government used parliamentary supremacy to insulate the many legal provisions which discriminated against black South Africans and which restricted the basic rights of citizens from effective judicial scrutiny.

²⁰ Republic of South Africa Constitution Act 32 of 1961.

²¹ Ss 7–15. See also Dugard, J (1978) *Human Rights and the South African Legal Order* 35.

²² Ss 108 and 118 entrenched English and Afrikaans as the two official languages of South Africa with equal status and prohibited amendment of the entrenched sections except with the support of two-thirds of the members of the House of Assembly and the Senate. However, a later amendment allowed homelands to recognise one or more of the other indigenous languages for that particular self-governing territory.

Having said this, however, we must be careful not to confuse the substance of the Westminster constitutional model with the abuses to which it was put and can potentially be put. The British experience with parliamentary supremacy is markedly different from that of its former colony South Africa and bears testimony to the fact that as a model of constitutionalism, there is nothing inherently flawed or problematic with the Westminster model. Like all other constitutional models, it has its strengths and weaknesses, but any weaknesses it may have are not directly responsible for the system of racial or gender exclusion and apartheid. Often, such weaknesses can be traced back to problems with the political culture and political parties and not necessarily with constitutional structures.

However, the tainted history of the Westminster system in South Africa most likely contributed to it not being wholly adopted as the preferred model during constitutional negotiations in the early 1990s.²³ While the end of apartheid brought with it an end to the era of parliamentary supremacy in South Africa, aspects of the Westminster system nevertheless found their way into the South African Constitution in amended form.

2.2.4.3 The era of constitutional supremacy

2.2.4.3.1 Introduction

We discussed the history of the constitutional negotiations in chapter 1 and detailed the context that informed the choices made by the drafters of the Constitution. In this section, we therefore describe and discuss the prominent features of South Africa's democratic Constitution that arose from constitutional negotiations.

2.2.4.3.2 Constitutional supremacy

By far the most definitive feature of South Africa's post-apartheid constitutional system is that of constitutional supremacy. This notion of a supreme constitution is an important one on which South Africa's democratic constitutional dispensation is based. The supremacy of the Constitution is referred to in the Constitution, first, as one of the founding values on which the Republic is based and, second, as a binding and enforceable rule.

Section 1(c) of the Constitution thus provides that: 'The Republic of South Africa is one, sovereign, democratic state founded on the following values ... [s]upremacy of the Constitution and the rule of law.'

And section 2 of the Constitution goes on to provide that: 'This Constitution is the supreme law of the Republic; law or conduct inconsistent with it is invalid, and the obligations imposed by it must be fulfilled.'²⁴

The decision by the drafters to adopt a system of constitutional supremacy has had far-reaching implications for how the current democratic state operates, how the various structures and institutions of governance relate to one another and how governmental power

23 The post-1994 Constitutions did adopt a form of parliamentary government usually associated with the Westminster constitutional model as - unlike in the US system - most members of the executive remain members of the legislature.

24 These provisions are augmented by s 165(5) of the Constitution which states that '[a]n order or decision issued by a court binds all persons to whom and organs of state to which it applies' while s 172(1) states that '[w]hen deciding a constitutional matter within its power, a court ... must declare that any law or conduct that is inconsistent with the Constitution is invalid to the extent of its inconsistency'.

is exercised. What is of interest to us here (and this is a question that is peculiar to the South African Constitution), however, is whether there is a difference between constitutional supremacy as a *value* captured by section 1 of the Constitution and constitutional supremacy as a binding and enforceable *rule* set out in section 2. Notionally, we would assume that there should be some difference or significance to the drafters having included the idea of constitutional supremacy in two different provisions with two differing connotations.

However, judging from the case law, it appears that the courts have made nothing of the difference between the two concepts. In fact, we find that there are few references in the case law to these provisions, save for passing, unsubstantiated references to the fact that the Constitution is supreme.²⁵ With respect to the declaration of supremacy in section 2, a possible reason put forward for the lack of judicial consideration of it is 'due to the clarity of the rule it states'.²⁶ In other words, there is little room for alternative interpretations of the provision. This position finds support in the General Provisions Chapter²⁷ of the Constitution in which section 237 demands that 'all constitutional obligations must be performed diligently and without delay'.

The procedure for amending section 1 of the Constitution differs from and is more stringent than the procedure for amending section 2. A bill amending section 1 may be passed only with a supporting vote of at least 75% of the members of the National Assembly (NA) and the support of at least six provincial delegations in the National Council of Provinces (NCOP).²⁸ A bill amending section 2 may be passed simply with a supporting vote of two-thirds of the members of the NA.²⁹ However, it is doubtful that Parliament would be able to amend section 2 without infringing on the values set out in section 1. If this happens, the constitutional question will arise whether the amendment of section 2 in effect amends section 1 and thus requires the more onerous amendment procedure to be followed to be validly passed.

While little seems to turn on whether constitutional supremacy is appealed to as a value or a binding and enforceable rule, constitutional supremacy is certainly a defining feature of South African constitutionalism as it renders the entire Constitution justiciable. Any law or conduct can be tested against the provisions of the Constitution and must be declared unconstitutional and invalid if it fails to comply with these provisions. Given the **justiciability** of all rights and duties in the Constitution, an important incidence of constitutional supremacy, therefore, is the institutionalisation of **judicial review** which enjoins the courts to declare any law or conduct inconsistent with the Constitution invalid.³⁰ This power vested in the judiciary is an important one that secures the rights of all rights-holders under the Constitution as well as securing the Constitution itself against violation as no authority or law is higher than the Constitution. We discuss the institution of judicial review further in this and subsequent chapters of this book.

25 See, for example, *Pharmaceutical Manufacturers Association of South Africa and Another: In re Ex parte President of the Republic of South Africa and Others* (CCT31/99) [2000] ZACC 1; 2000 (2) SA 674 (CC); 2000 (3) BCLR 241 (CC) (25 February 2000) para 44. See also Roederer, C 'Founding provisions' in Woolman, S and Bishop, M (eds) (2013) *Constitutional Law of South Africa* 2nd ed rev service 5 13.18. Roederer argues that the role of the proclamation of supremacy in s 2 is to specify further the value in s 1(c).

26 Roederer (2013) 13.18.

27 Ch 14 of the Constitution.

28 S 74(1) of the Constitution.

29 S 74(3) of the Constitution.

30 See *S v Mamabolo (eTV and Others Intervening)* (CCT 44/00); [2001] ZACC 17; 2001 (3) SA 409 (CC); 2001 (5) BCLR 449 (CC) (11 April 2001) para 38.

**PAUSE FOR
REFLECTION****Exploring the effects of the supremacy of the Constitution on the legal system**

Chaskalson P conveyed the primacy (or supremacy) of the Constitution lucidly and strongly in *Pharmaceutical Manufacturers Association of South Africa and Another: In re Ex parte President of the Republic of South Africa and Others* where he stated: There is only one system of law. It is shaped by the Constitution which is the supreme law, and all law, including the common law, derives its force from the Constitution and is subject to constitutional control.³¹ This declaration by the Constitutional Court is pivotal for South African law in general as it affirms the Constitution as the founding law of the Republic. It also affirms the unity of the South African legal system which derives its legitimacy and its binding force from the Constitution alone. Michelman explained the further significance of this passage as follows:

In those two sentences, the CC [Constitutional Court] claims for the Final Constitution [FC] not just one special virtue as compared with the rest of South Africa's laws but three of them, two of which go well beyond the claim (which also is there) for the Constitution's supremacy in the unadorned, norm-trumping sense declared by FC s 2. The first of these additional claims is for the pervasiveness of the Final Constitution's norms – 'all law ... is subject to constitutional control.' The second is the claim for the Final Constitution's status as the basic law of South Africa – 'all law ... derives its force from the Constitution.' Certainly there is no other law in South Africa of which it may be said either that all (other) law is subject to its control or that the force of all (other) law flows or stems from it. Now, a law to which these unique virtues are ascribed, along with trumping-sense supremacy, would be about as superlatively – or 'radically' – supreme as a law can get. Suppose, then, that the CC's attribution to the Final Constitution of the three special virtues combined could be seen to posit or reflect a value to which South Africa's embrace of the Final Constitution could defensibly be said to have committed the country; a value, that is, that stands distinct from and additive to the other human and societal goods posited as founding values by FC s 1. If we could see the threefold attribution in such a light, then we might understand 'supremacy of the Constitution' as it occurs in FC s 1's list of founding values to be the textual pointer toward the CC's claims in *Pharmaceutical Manufacturers* for the pervasiveness and the basic-law status, as well as the normative-trumping force, of the Final Constitution 'Supremacy of the Constitution' names the value of legal-systemic harmony in the service of the vision of the good society staked out by the entire list of founding values set forth in FC s 1 and instinct in the rest of the Final Constitution. We deal here with the value of the unity of the legal system – meaning the system's normative unity or, as one might say more poetically, its visionary unity. The value in question is the value of having all the institutional sites in which the legal order resides – and especially all of its courts of law – pulling in the same and not contrary directions, working in ultimate harmony (which is not to say without difference and debate) toward the vision (the elements of which must always be open to interpretation) of a well-ordered South African society depicted in very broad-brush fashion by the other founding

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31 (CCT31/99) [2000] ZACC 1; 2000 (2) SA 674 (CC); 2000 (3) BCLR 241 (CC) (25 February 2000) para 44.

values listed in FC s 1: human dignity, equality, human rights and freedoms, non-racialism, non-sexism, and the basic accoutrements of an open, accountable, representative-democratic system of government.³²

If Michelman is correct, it means that the Constitution, and the norms or values enshrined in it, must now animate all aspects of South African law (as interpreted, developed and applied by all South African courts) in the pursuit of justice. The supremacy of the Constitution then signifies not only the absolute unity of the legal system, but such a unity that stands in the 'service of transformation by, under, and according to law'.³³ No aspect of South African law, including the common law and customary law, would then be immune from the influence of the basic values of human dignity, equality, human rights and freedoms, non-racialism and non-sexism, as well as the basic accessories of an open, accountable, representative-democratic system of government which are embodied in the Constitution. Any development of the common law and customary law will have to occur with reference to these basic constitutional values. The principle of constitutional supremacy, in this understanding, will thus have a far more profound effect on the legal system than merely indicating that all law inconsistent with the specific provisions of the Constitution will now be unconstitutional. The trajectory of the development of all forms of law in South Africa will be fundamentally altered by the supremacy of the Constitution, thus understood. This radical aspect of South Africa's constitutional model is not always appreciated by lawyers and judges who continue to work with the common law, customary law and legislation as if these are entirely insulated from the norms enshrined in the Constitution.

2.2.4.3.3 A value-based constitutional system

Section 1 of the Constitution affirms that the South African constitutional model aspires to higher values and prescripts than merely majoritarian democracy. This section sets out some of the most important values on which the South African constitution model is founded. Section 1 reads as follows:

The Republic of South Africa is one, sovereign, democratic state founded on the following values:

- (a) Human dignity, the achievement of equality and the advancement of human rights and freedoms.**
- (b) Non-racialism and non-sexism.**
- (c) Supremacy of the constitution and the rule of law.**
- (d) Universal adult suffrage, a national common voters roll, regular elections and a multi-party system of democratic government, to ensure accountability, responsiveness and openness.**

32 Michelman, F 'The rule of law, legality and the supremacy of the Constitution' in Woolman and Bishop (2013) 11.37-11.38.

33 Michelman (2013) 11.38.

Section 1 of the Constitution is of profound importance as it sets out the foundational values on which the current constitutional dispensation is based. In so doing, it is self-evident that these values reflect a break from the past and establish the foundations of a new society in the making. This society is governed by law, but the law derives its force from the Constitution and its development is animated by the values contained in section 1 of the Constitution. The importance of these values within the overall constitutional scheme is reflected in the fact that section 1 is an entrenched provision that can only be amended subject to special procedures and majorities being attained in Parliament.³⁴

COUNTER POINT

Amending the founding provisions of the Constitution

The founding provisions are often lauded as being central to South African democracy and, as Michelman points out, to the legal system as a whole. However, we will see below that the values they protect are not inviolable. The founding provisions may be amended provided 75% of the members of the NA and six provinces in the NCOP vote for such an amendment. Therefore, Parliament could alter the provision that states that the Constitution (and not Parliament) is supreme if a required majority of members of the NA and delegations in the NCOP support this. So too could the provisions that state the values of human dignity, the achievement of equality and the advancement of human rights and freedoms. If Parliament were to make an amendment of this kind to the Constitution (an unlikely scenario as no political party has ever acquired the 75% majority in the NA), it would be possible to restore Parliament to the position of supremacy it enjoyed during the apartheid era. Such a Parliament would also be able to abolish the rule of law.

Some critics argue that it would have been more prudent of the drafters of the Constitution to have made section 1 unchangeable (something the German constitution-makers did)³⁵ to safeguard the democratic and non-racial character of the South African constitutional system. Others argue that circumstances and the political, economic and social context in a country may change over time and that future generations should not be absolutely and finally held to ransom by the drafters of the 1996 Constitution. Such a system, they say, would in extreme cases invite the government of the day that enjoys legitimacy and overwhelming electoral support to suspend the Constitution in its entirety.

How a person views this issue will depend on his or her commitment to the values enshrined in section 1 as well as on his or her view of the political landscape and whether an elected Parliament would ever be able to muster the requisite heightened majority to abolish the basic values on which the 1996 Constitution is based.

³⁴ See s 74(1)(a) and (b) of the Constitution.

³⁵ Art 79(3) of the German Basic Law states: 'Amendments to this Basic Law affecting the division of the Federation into *Länder*, their participation on principle in the legislative process, or the principles laid down in Articles 1 and 20 shall be inadmissible.'

Apart from the clearly articulated values found in section 1, there are also some unarticulated values embodied in the Constitution which, together with those in section 1, form the normative basis of how the South African Constitution is to be interpreted.³⁶ In other words, our Constitution does not simply set out the rules, processes and structures that place limits on governmental power. The Constitution also expresses itself on the ideals and characteristics to which we, as a society, deem worthy to aspire. This idea should be familiar to us as it is derived from the notion of a value-based democratic order as found in the German model discussed above.³⁷ In the South African context, the courts have recognised the significance of the value-based constitutional system where they have asserted that the democratic constitutional order has established an 'objective normative value system'.³⁸ However, this notion, while self-evidently important, has not been the subject of much attention from the courts³⁹ or academic commentators in South Africa.⁴⁰

2.2.4.3.4 Co-operative 'federalism'

The final characteristic of South African constitutionalism that we shall discuss in this section is that of the federal division of power. The Constitution provides for what can be deemed a quasi-federal division of power across three levels or spheres of government, namely national, provincial and local spheres. This system differs from the traditional federal system where the powers and functions of different levels of government are clearly delineated and where each sphere is empowered to deal exclusively with certain distinct subject matters.

According to Chapter 3 of the Constitution, the model adopted is that of 'co-operative federalism' or co-operative government. Chapter 3 makes it clear that while the three spheres of government are distinct, all three spheres are expected to work together to deliver the vision of the Constitution.⁴¹ Rather than competing with each other, the Constitution envisages a co-operative relationship between the three levels of government that entails their sharing responsibilities in an interdependent manner.⁴²

Co-operation between the three levels of government is not always easy, especially if different political parties govern different entities in different spheres. For example, if the African National Congress (ANC) governs nationally, the Democratic Alliance (DA) governs the Western Cape Province and a coalition of political parties governs one of the municipalities in the Western Cape, this will present specific challenges. In terms of Chapter 3, the ANC national government, the DA Western Cape government and the coalition

36 See Roederer (2013) 13.3–13.8 where he makes the point that s 1 does not explicitly contain all the foundational values, for example separation of powers, *ubuntu*, transformation, social justice and constitutionalism. The courts have recognised these values and several others and we will discuss them in the chapters to follow.

37 See Woolman, S 'Application' in Woolman and Bishop (2013) 31.93–31.94.

38 See *Carmichele v Minister of Safety and Security and Another (Centre for Applied Legal Studies Intervening)* 2001 (4) SA 938 (CC) para 56 where the Constitutional Court confirmed that the Constitution contained an 'objective value system', but declined to discuss what this value system might be. See also Roederer (2013) 13.9–13.15.

39 See *Carmichele and Geldenhuys v Minister of Safety and Security and Another* 2002 (4) SA 719 (C) 728G–I where the Court affirmed that the 'objective normative value system' seeks to establish a society based on human dignity, equality and freedom 'and institutions of government which are open, transparent and accountable to the people whom they serve. The content of this normative system does not only depend on an abstract philosophical inquiry but rather upon an understanding that the constitution mandates the development of a society which breaks clearly and decisively from the past and where institutions which operated prior to our constitutional dispensation had to be instilled with a new operational vision based on the foundational values of our constitutional system.'

40 However, see Woolman (2013) 31.90 as well as Michelman (2013) 11.40.

41 S 40(1) of the Constitution describes the three levels of government as being 'distinctive, interdependent and interrelated'.

42 See s 41(1)(h)(i) to (vi) of the Constitution. See also Currie and De Waal (2001) 119–20.

municipal government are required to co-operate with each other. This task is made even more difficult as the national government, the provincial governments and municipalities sometimes are all empowered to deal with a specific subject matter, for example, the provision of housing. If political parties are unable to work together, the governments in the various spheres will not be able to deliver on their housing mandate in an effective manner. This is why the provisions of Chapter 3 are of utmost importance for the smooth running of the country. We will discuss the details of co-operative federalism in chapter 8 of this book.

COUNTER POINT

Critique of constitutional supremacy

The decision to opt for a model of constitutional supremacy in South Africa has been criticised on the ground that it shifted power from the legislature and the executive to the judiciary. An article written in 2011 by Ngoako Ramatlhodi encapsulated this criticism as follows:

We have a Constitution celebrated as the best in the world. Some would say it is the most progressive, while others would call it the most liberal. A brief analysis of the conditions and forces that gave birth to our Constitution seems to be in order. In case we do not remember, the collapse of the then Soviet Union provided the most immediate catalyst to the process of negotiations for a new and democratic South Africa. In apartheid South Africa in the late 1980s, the regime could only keep a modicum of law and order through a state of emergency. The masses were no longer willing to be ruled in the same old way.

An orderly retreat for the regime meant giving up elements of political power to the black majority, while immigrating substantial power away from the legislature and the executive and vesting it in the judiciary, Chapter 9 institutions and civil society movements.

Interestingly, and perhaps reflecting the balance of forces at the time, the movement was willing to make this fundamental and substantive concession. However, the concessions described cannot be explained only as a reflection or result of a balance of forces at the time. In this regard, one ventures to suggest that the negative experience of the apartheid government by the oppressed might explain the ease with which the liberation movement embraced what one calls the emptying of the state.

Apartheid forces sought to and succeeded in retaining white domination under a black government. This they achieved by emptying the legislature and executive of real political power. On the other hand, the liberation movement was overwhelmed by a desire to create a society bereft of any form of discrimination and, as a result, made fatal concessions.

We thus have a Constitution that reflects the great compromise, a compromise tilted heavily in favour of forces against change. However, there is a strong body of thought arguing the view that our Constitution is transformative. In this regard, a point needs to be made that a constitution can either be progressive or reactionary, depending on the balance of forces in the society it governs.⁴³

43 Ramatlhodi, N (2011) THE BIG READ: ANC's fatal concessions, 1 September 2011, accessed on 1 December 2019 at <http://www.timeslive.co.za/opinion/commentary/2011/09/01/the-big-read-anc-s-fatal-concessions>.